

NEW SERIES.]

[NO. 2.

THE JOURNAL
OF
PRISON DISCIPLINE
AND
PHILANTHROPY.

PUBLISHED ANNUALLY
UNDER THE DIRECTION OF "THE PHILADELPHIA SOCIETY FOR
ALLEVIATING THE MISERIES OF PUBLIC PRISONS,"
INSTITUTED 1787.

JANUARY, 1863.

PHILADELPHIA:
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CONSTITUTION

OF THE

Philadelphia Society for Alleviating the Miseries of Public Prisons.

When we consider that the obligations of benevolence which are founded on the precepts and examples of the Author of Christianity, are not cancelled by the follies or crimes of our fellow-creatures; and when we reflect upon the miseries which penury, hunger, cold, unnecessary severity, unwholesome apartments, and guilt, (the usual attendants of prisons,) involve with them, it becomes us to extend our compassion to that part of mankind, who are the subjects of those miseries. By the aid of humanity, their undue and illegal sufferings may be prevented; the links which should bind the whole family of mankind together, under all circumstances, be preserved unbroken; and such degrees and modes of punishment may be discovered and suggested, as may, instead of continuing habits of vice, become the means of restoring our fellow-creatures to virtue and happiness. From a conviction of the truth and obligation of these principles, the subscribers have associated themselves under the title of “THE PHILADELPHIA SOCIETY FOR ALLEVIATING THE MISERIES OF PUBLIC PRISONS.”

For effecting these purposes, they have adopted the following CONSTITUTION.

ARTICLE I.

The Officers of the Society shall consist of a President; two Vice-Presidents, two Secretaries, a Treasurer, two Counsellors, and an Acting Committee; all of whom shall be chosen at the stated meeting to be held in the first month (January) of each year, and shall continue in office until their successors are elected; but in case an election from any cause shall not

be then held, it shall be the duty of the President to call a special meeting of the Society within thirty days, for the purpose of holding such election, of which at least three days' notice shall be given.

ARTICLE II.

The President shall preside in all meetings, and subscribe all public acts of the Society. He may call special meetings whenever he may deem it expedient; and shall do so when requested in writing by five members. In his absence, one of the Vice-Presidents may act in his place.

ARTICLE III.

The Secretaries shall keep fair records of the proceedings of the Society, and shall conduct its correspondence.

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ANNUAL REPORT.

In accordance with the present arrangement which requires that an Annual Report should be prepared of the proceedings of “The Philadelphia Society for Alleviating the Miseries of Public Prisons,” the “Acting Committee” now proceed to exhibit to the Seventy-Seventh Annual Meeting, such matters of interest as have resulted from the action of the Society, or have come under its notice during the year just past.

Law Shortening Sentences.—As the proceedings of the Society in procuring the passage of a Law shortening the sentences of prisoners for good conduct, occupied considerable space in connection with the last Report, which announced that the provisions of this Law had not then been carried out in the Eastern State Penitentiary, it seems proper that we should again advert to the subject, that those who feel an interest in it may understand its present position. As the authorities to whom the execution of the Law was delegated, declined acting under it, for reasons which they deemed sufficient, the Society, upon consultation with their counsel, concluded that the most amicable mode of proceeding for the purpose of testing its constitutionality, and the obligation resting upon these authorities to extend to the prisoners the proffered boon, would be by *Habeas Corpus*, they therefore had the cases of two prisoners believed by them to be entitled to their discharge under the Law, brought before the Judges of the Supreme Court. The decision was adverse, and the prisoners were remanded to serve out the entire term of their sentences. The ground taken by the Judges in their decision, was so broad as to make it very difficult to frame a modification of the Law which would not contravene the objections raised, and yet retain what were deemed to be some of its most valuable features. Under all the circumstances, it has been thought best to let the matter rest for the present. It is hoped, however, that by the joint action of the Prison Society, and the Inspectors of the Penitentiary, we may yet procure a Bill to be enacted into a Law, which shall be so framed as to enable us, in some

measure at least, to effect our desired object. We should have freely acquiesced in some verbal amendments to the Law, but much regret that all of its provisions should thus have been rendered inoperative, as we feel assured that the *principle* contended for is founded in justice, and that its practical effect on the prisoners would be salutary as a part of the Prison Discipline,—not only by way of prompting to obedience to the established rules, and to habitual good conduct while in confinement, but also in aiding to promote their actual and permanent reformation, by practically showing them, that as it is evidently to their interest to conduct well while there, it must doubtless be equally so when they are at large in the community; and the habit thus acquired of looking to this motive, and practising this restraint on their heretofore comparatively unbridled propensities, must be of great service to them, on again going abroad into the world. If this is the practical effect of the Law, it is plain, that it is not only a boon to the prisoner, but that the community is equally interested in its operation, as fewer of the prisoners will resume their depredations on society after their discharge. Besides, is it not the part of wisdom at least, if not of duty, in framing laws for the temporal government of society, to follow the example of the Divine Law-giver? We do not find his code to be a system of punishment only, but also largely one of reward. If we have there placed before us a fear of punishment for breaking the Divine Law, we have also exhibited to our view, in most attractive form, the hope and assurance of reward, if we do that which is right.

Employment for the Prisoners.—Owing to the derangement of the business affairs of the country, resulting from the existing Rebellion, it seemed probable for a time, that many of those confined in the Eastern State Penitentiary would be very much without work. The subject of suitable and constant employment for the prisoners has therefore claimed our attention during the past year, as one of considerable importance. We have had under appointment, a Committee, whose special duty it was to attend to this matter, and to devising means by which healthful exercise might be secured, especially for the benefit of such as might not have sufficient work to occupy their time. We view labor, in connection with the prisoners, in a two-fold light. The possession of it is a positive good, not only as a comfort and companion in their solitary hours, but also as a reformatory agent. And the want of it is not only a negative, but a positive evil, especially with

those of a low order of education and intelligence, who, being unable to read, and possessing very little matter for reflection, have no resource with which to occupy and interest the mind, and consequently there is danger that by constantly preying upon itself, it may become diseased. Besides, as idleness has been said to be the parent of crime, it would be no small matter, if by furnishing employment, we could do nothing more than establish habits of industry, which probably very few of those confined in prisons had ever practised in their previous lives. While at large, plotting or practising mischief and crime, labor has appeared to them repulsive, and never having enjoyed its rewards, they have shrunk from it,—but when their evil career has been thus suddenly brought to a close, and social intercourse of every kind with their fellowmen is very much restricted, and that with their former associates is wholly cut off, labor is soon sought after, and is found to be such an alleviation to their present condition, that they cherish it as a blessing. And when to this is added the “hope of reward” which it is most truly said “sweetens labor,” which the credit for “over work,” granted to the prisoners in our Penitentiary, presents to them, a powerful additional motive to application is brought into action with most salutary results. One of the prisoners in the Penitentiary recently informed a member of our Committee, that he had earned in one month \$17, by over work, after performing his allotted task,—that is to say, \$8 50 for himself, and the same amount for the Penitentiary, for the use of the County from which he came, and he added, with an appearance of much interest, that he expected at the end of the three years he had yet to serve, to take out with him between three and four hundred dollars. Many of them are thus soon brought to see and feel that labor instead of being repulsive, as it had formerly appeared to them, greatly alleviates the necessary discomforts of their present condition, and also that it is a reliable resource for the maintenance of those who apply themselves to it. Many also, who on entering had no knowledge of any kind of trade, on leaving, take with them, not only habits of industry, but also a pretty thorough acquaintance with some one or more of the mechanic arts, such as shoe-making, cane-seating of chairs, weaving, &c. They are thus qualified, upon again going forth into the world, to take a reputable position in society, and secure a livelihood without resuming their depredations on the community. Estimating the value of labor for the prisoners as we do, it is gratifying to us to know that they have recently been pretty fully supplied with it. It is the intention and direction of the Law, that it shall be thus

supplied; and we believe, as will be seen by our foregoing remarks, that it is a valuable adjunct in the Pennsylvania or Separate System of Prison Discipline. In the early period of the introduction of this system, some men, of undoubted talent and philanthropy, strongly advocated separate confinement, *without labor*, as being the true system, and this plan was actually introduced and practically tested at the Western Penitentiary of this State, established at Pittsburg; but it was soon found to be wrong, and to have an injurious effect, both upon the mental and physical health of the prisoners. It was also tried in the State Penitentiary at Auburn, New York, in 1822, under accompanying circumstances however of great cruelty, and of unfairness so far as it was intended as a test of the effect of the Separate System on the mental and bodily condition of those subjected to it.

William Crawford, who visited this country in 1833 and 1834, under appointment by the British Government, to inspect the several penitentiaries in the United States, with a view to applying at home, any parts of the systems on which they were governed, which might appear desirable, in the report of his labors and inquiries, which he published after his return, makes the following statement: "In America, the opponents of this (the Separate) System, have produced very erroneous impressions by the publication of certain experiments made a few years since, of solitude without labor; statements which have also been widely circulated in England, to the great prejudice of solitary imprisonment of every description. Having carefully inspected the prisons in question, I feel bound to state my conviction, that the fatal effects which have been described, were not the result of solitude, but of the contracted dimensions and unhealthy condition of the cells in which the experiments were conducted. A trial of solitary confinement day and night, without labor, was made at Auburn in the year 1822 for ten months, upon eighty of the most hardened convicts. They were each confined in a cell only seven feet long, three feet and a half wide, and seven feet high.¹ They were on no account permitted to leave the cell during that long period, on any occasion, not even for the purposes of nature. They had no means of obtaining any change of air, nor opportunities of taking exercise. The most disastrous consequences were the natural result. Several persons became insane, health was impaired and life endangered. The discipline of the prison at that period was one of unmixed severity. There was no moral nor religious instruction of any kind communicated within its

walls, nor any consolation administered by which the convict was enabled to bear up against the cruelty of this treatment. Nor was a trial of the same description, which took place in the State of Maine, conducted under more advantageous circumstances. The night rooms or cells at this prison are literally pits, entered from the top by a ladder, through an aperture about two feet square. The opening is secured by an iron grate used as a trap-door; the only other orifice is one at the bottom, about an inch and a half in diameter, for the admission of warm air from underneath. The cells are eight feet nine inches long, four feet six inches wide, and nine feet eight inches high. The gloom is indescribable. The diet during confinement was bread and water only. Thus immured, and without any occupation, it will excite no surprise to learn that a man who had been sentenced to pass seventy days in one of these miserable pits, hung himself after four days' imprisonment. Another condemned to sixty days, also committed suicide on the twenty-fourth day." Our author goes on to speak of similar experiments having been made in Virginia, where the cells were in fact mere dungeons, being in the basement, and so dark as to require a lamp in visiting them. They were not warmed at any season of the year, and a prisoner's feet were actually frozen during the confinement. In damp weather the water stood in drops on the walls, &c. He then adds: "From experiments of this character no just conclusions can therefore be derived, unfriendly to solitary imprisonment of any kind, especially when accompanied by employment, in large and well-ventilated cells, the arrangements of which have reference to the preservation of the health, regular employment, and the improvement of the mind of the offender."

We are aware that the disastrous results of the treatment of the prisoners, as set forth in these extracts, was not wholly owing to their being deprived of labor, but it is evident from the manner in which the subject is treated by the author, that the evil was greatly aggravated by this circumstance. We here see, however, what monstrous cruelty has been practised in the name of the "Separate System," and these deplorable but inevitable results were immediately seized by its opponents and spread abroad through the length and breadth of the land, both in Europe and America, as conclusive evidence, that these evil consequences were necessarily inherent in, and a part of the system itself. The consequence was, that many philanthropic and well meaning persons beyond the limits of Pennsylvania, became

prejudiced against it to that degree, that there was no opening in their minds to hear the truth, and on merely *naming* the system to them they would almost turn from you in disgust. This prejudice is largely operative to the present time, and the much to be regretted result has been that this system, truly humane as it is, when properly carried out (of which the Eastern State Penitentiary of Pennsylvania may be taken as a practical illustration), and superior, as we believe, to all others, has not made one tithe the progress in the world which we feel assured it would have done if its true character had been understood.

The “Separate” and the “Silent” Systems compared.—It may be thought that we have dwelt long enough on this branch of the subject; but as its discussion has in some measure brought into view our particular prison system, that of the entire separation of the prisoners from each other, day and night, during the whole term of their confinement, and by inference, if not directly, contrasted it with the “Auburn” or “Silent” System, where they are separated only at night and at their meals, but at other times are congregated in their workshops, &c., under a peremptory rule of silence. We avail ourselves of the opportunity to introduce two or three short paragraphs from high authority, with a view to assisting those who may read this report beyond the limits of our Society, in arriving at a correct understanding of the important question at issue.

William Crawford, from whom we have already quoted, a commissioner of the British Government, and a man distinguished for his humanity and intelligence, who during more than twenty years had devoted his time to visiting the prisons and penitentiaries in the United States and England, in a report on the systems just referred to, made to the British Parliament, places them in contrast in the following manner, to wit: “In judging of the comparative merits of the two systems it will be seen, that the discipline of Auburn is of a physical, that of Philadelphia of a moral character; the whip inflicts immediate pain, but solitude inspires permanent terror. The former degrades while it humiliates, the latter subdues but it does not debase. At Auburn the convict is uniformly treated with harshness, at Philadelphia with civility; the one contributes to harden, the other to soften the affections. Auburn stimulates vindictive feelings, Philadelphia induces habitual submission. The Auburn prisoner when liberated, conscious that he is

known to past associates, and that the public eye has gazed upon him, sees an accuser in every man he meets. The Philadelphia convict quits his cell secure from recognition, and exempt from reproach." He also says, "It is a curious fact, that some of the strongest testimonies in favor of individual separation, may be collected from those who are the best acquainted with the operation of the Silent System. We can assert with confidence, that there is not one of the best conducted prisons, in which the Silent System is effectually enforced, that we have not repeatedly visited and closely inspected; and we can truly state, that with one exception only, the governors of those prisons have acknowledged, that had they to decide upon the merits of the respective plans, they would unquestionably give their unqualified preference to the Separate System."

The enlightened and excellent Count Gasparin, in a letter to George Sumner of Boston, then in Paris, in commending the system (with the practical operation of which in France he was perfectly familiar), says, "Every government which in the actual state of society, and of the progress of social science, adopts any other than the Separate System, will expose itself to the necessity of having, before long, to reconstruct its prisons."

Insanity.—In a short paragraph in our last Annual Report, we think that we fully met and refuted the charge frequently made by the opponents of the system, that its discipline is liable to produce insanity, and relieved the humane feelings of those who were under a sincere, but mistaken apprehension of this result, by referring to the close and systematic observation which had for many years been directed to this point, in the Eastern State Penitentiary of Pennsylvania, which established the fact, that instead of the mental health of the prisoners having been injured, it had in the aggregate been decidedly improved during their confinement. We propose now, in support of this position, to introduce the testimony of two acute observers of the operation of the same system in France. First, the distinguished Physician, *Dr. Lelut*, known in America as well as in Europe, by his important work on *Insanity, &c.*, in speaking of the results of an examination of the prisons on the Separate System, which he had made by direction of the French Government, states that there were then in France twenty-three such prisons, and that he had examined about half of them,—and goes on to say, "In all these houses, I have confirmed *de visu*, what was

previously declared by theory, that the Separate System, independent of all the facilities which it offers, for elementary and professional instruction, for the moral and religious education of the prisoners, for religious exercises—independent of the circumstance that it alone prevents prisoners from associating with each other, and from corrupting each other—*that it causes infinitely fewer cases of death and insanity than any other system of imprisonment.* The actual condition of our cellular houses, their history, which covers already a period of three, four, and five years, the testimony of their directors, of their physicians, of their visitors, do no leave any doubt upon this important point.”

The Prefect of the Department, in enclosing to the Government the Reports of the Chaplain, Physician and Directors of the Prison of Tours in France, writes thus: “These Reports establish in the most complete manner, that in regard to the sanitary condition, and the moral education of the prisoners, the system of total separation, so violently and so unjustly attacked, produces the most remarkable results. Of a total number of 1,626 persons who have entered the prison since its inauguration, 16 only have been transferred to the hospital, and one only has died,—and this single case of death was an old man of seventy, who was laboring under a chronic affection of the lungs. If we seek for the influence which it exercises on the intellectual faculties of the prisoners, we must recognize, that far from disturbing their reason, it produces on their minds the most salutary results. In proof of this, I may mention, that not a single case of insanity has occurred in the prison, and that many who have been condemned for a term which require their removal to the *Maisons Centrales*, solicit as a real favor, the permission to complete their imprisonment in their cell.”

M. Moreau Christophe, Inspector of French Prisons, *Dr. Julius*, who visited the Penitentiaries of the United States as a Commissioner from the Prussian Government, and *M. Ducpetiaux*, Inspector General of the Prisons of Belgium, with many other eminent foreigners, who had facilities for closely observing the working and results of the Separate System, and of comparing it with the “Silent” and other Systems of imprisonment existing in different places, have in their various Reports given very interesting and instructive views, confirmatory of the superior value of the system adopted by us, but we must pass them by, and proceed with our Report.

Tobacco.—The subject of the use of Tobacco in the Penitentiary has again claimed our attention and care during the year now coming to a close, as it did during the one which immediately preceded it. It will no doubt be acknowledged by most, that the practice of using it is of no real value to those who indulge in it, unless it be in the character of medicine, in a very few cases, and consequently, if there was no moral or physical evil resulting from it, its use should be discouraged on the score of economy, and with a view to lessening the number of the wants of individuals, and therefore, making it more easy to satisfy them. But when, in addition to this, its use is very often attended by serious physical and moral evils, such as impairing the bodily health, and exciting a craving for the use of intoxicating drink, it seems especially desirable that those who are clear on entering the Penitentiary, shall not there be permitted to contract the habit, and that an effort should be used to break the habit with those who have brought it with them, and in fact, that it should be made a part of the Prison Discipline, in teaching them habits of economy for their own future good, during the period in which the law makes them subject to the control of the prison authorities. Our care of the subject, which has heretofore been in the way of moral suasion, with the prisoners, and those who had the control of them, and which has been exercised verbally, as suitable opportunities offered, has finally resulted in the adoption of a Resolution, respectfully asking the Inspectors wholly to prohibit its use in the Penitentiary, (as the Inspectors of our County Prison have done there, with highly satisfactory results,) unless it be in cases strictly medicinal. The quantity at present used in the Penitentiary is much reduced, but this is done, as we understand, as a matter of economy in conducting the Institution, as the cost of the article has latterly been much enhanced.

Pardons.—The very important subject of Pardons, and the manner in which the power is exercised, (not only in our own Commonwealth, but in most places where it exists,) has at different times occupied our attention, though not specially within the past year, with desires that some result might be reached by which the acknowledged evils of the pardoning system might be at least in part remedied. It is a power which should exist somewhere, and be exercised sometimes; but the good of society, and even of the parties on whom it is to operate, requires that it should only be applied to exceptional and rare cases, and with great caution. We have not yet succeeded in

maturing any plan which it is believed would be likely to remedy, or materially lessen, the existing difficulties.

Abuses by Committing Magistrates.—We have again had under the care of a Committee, the abuse of power by the Aldermen or Committing Magistrates. This is an evil of great magnitude, and has claimed the attention of the Society almost from its origin, but without yet making much advance towards its suppression; nor do we hope to effect it, till their mode of compensation is changed from fees to a stated salary from the Public Treasury. As we shall have occasion to refer to this matter again as we advance in our Report, this short notice may suffice here.

Better Accommodations needed by the Society.—The books and papers of our Prison Society are accumulating to such an extent, as to make it difficult, with the accommodations we possess, to take proper care of them. Many of them are so valuable as to make their preservation almost an object of public interest. An ample and secure fireproof would be very desirable, and also much more extensive book cases than we now have. Our funds, however, are so limited at present, as to be barely sufficient to meet our current annual outlay, such as the appropriation towards the support of the “Prison Agency,” that to the Prison “Association of Women Friends,” and for the aid of discharged prisoners, and the amount required to meet our Room Rent, the publication of our Journal, and various necessary incidental expenses. We therefore have nothing to spare towards procuring a suitable building or room of our own, which we think would be very desirable. We would therefore commend the Society and its various interests to the kindly notice of our many benevolent citizens who are blessed with ample means, as being deserving of their consideration and attention, both when making their current distribution from time to time of surplus income, and when through the medium of a will, they are making a final appropriation of their estates.

The Prison Agent.—William J. Mullen, the Prison Agent, acting under appointment and authority of the Inspectors of the County Prison, and also on behalf of our Prison Society, has continued his services in investigating cases of alleged oppressive and illegal commitments to the County Prison, with unabated zeal and singleness of purpose. He has, with the co-operation

of the proper authorities, succeeded in liberating during the year 1,223 of these from prison. Amongst them were many very interesting cases, where the common rights of individuals would have been successfully outraged, if they had not been inquired into and relieved by the action of the agent. And it should be remembered that the wrong and suffering in these cases is by no means limited to the individuals who are incarcerated, but that it often extends most cruelly to others connected with the prisoners. What must be the situation of the poor wife and helpless children, when the husband, the father, and provider for their urgent necessities, is thus wrongfully torn from them? Some are arrested and committed under mistake, but much of the wrong-doing in relation to such commitments, arises from the cupidity of the Police-aldermen, or committing magistrates, who many times, on the most frivolous charges, and sometimes without sufficient evidence against them, commit individuals to the prison from motives of gain. In some instances they are content with the fees established by law, but there is ground to believe that extortion is not unfrequently attempted to be practised, and sometimes with success. The mode of compensating the aldermen, by fees to be derived from the individual cases in which they act, gives them an interest in thus oppressing the helpless, and has long been a crying evil. Under this system, and in actual practice, there is good reason to fear, that much of the income of many of them is not merely "the gain of oppression," but that of extortion also. There are no doubt upright and honorable men among them, but until all fees for such cases are taken away, and a fixed salary substituted, we need not expect to find them as a class to be governed, in their official acts, by high-minded and disinterested motives.

We propose here giving a synopsis of a few of the cases contained in the monthly reports received from the agent during the year, of individuals liberated through his investigations and attentions.

One was that of a venerable old gentleman, for many years President of the Board of Commissioners of the Northern Liberties of Philadelphia, who had retired from business, being worth a handsome independence. He was in the habit of spending much of his time at the office of a relative of his, a merchant on the wharf. The clerk of the merchant on returning from bank, where he had been to make a deposit, found three five dollar United States

notes, which he handed to the merchant, who advertised for the owner to come forward and identify the money, and it would be given up. The merchant authorized his relative, the prisoner, to act for him during his absence, and if anybody properly identified the money, to take it from his desk and return it. Among the claimants was an ignorant woman, who said that she and her husband had lost \$50 between Frankford and South Street, and they did not come up any further in the city than Second Street; that the money they lost was in one, two, and three dollar notes. The prisoner informed her that neither the money she had lost, nor the place where she had lost it, agreed with that which had been found, and therefore she could not have it. She immediately went to an alderman and swore that the prisoner said he had her lost money, but would not give it to her. Upon this statement, accompanied by an affidavit from her husband (who had not heard the prisoner say anything on the subject), a warrant was issued, and he was arrested. On the hearing, the prisoner denied ever having said what had been testified against him, and informed the alderman that he had never seen the lost money, nor even either of the five dollar notes which had been found. Upon a commitment being made out, he asked the constable to go with him to get bail, which he refused to do. He also informed the alderman that he was abundantly able to go his own bail, which, however, he refused to take. The agent, seeing him in the prison, procured bail to be entered, and soon had him released.

A second was that of a woman who was committed for larceny, being charged with having stolen a box of jewelry of but little value. Upon investigation of her case, the agent ascertained that her prosecutor had previously robbed her of some bed ticking, and had brought this charge against her to defeat the ends of justice. She was arrested and imprisoned at the very time when she was required to be at Court to testify in reference to her stolen property. Careful examination enabled the agent to prove in Court that instead of the prisoner having committed a larceny, the prosecutor had entered her house during her absence, ripped open a pillow, and after placing the jewelry in it, sewed it up with a peculiar kind of thread, such as the agent found in the prosecutor's house. In confirmation of this, when the officer, in company with the prosecutor, was searching the prisoner's house for the jewelry, and could not find it, the prosecutor

pointed out the very pillow which contained it, and asked to have that searched.

A third case was that of an innocent woman who had been convicted and sentenced to three months on a charge of "false pretence." The charge consisted in her having applied to a member of the St. Andrew's Society, of which her husband had been a contributing member, for money to pay the funeral expenses of her deceased child, which had been buried the day before. A police officer, who was near at the time, arrested, and caused her to be committed, saying that she was an impostor, and he did not believe her story about the child. When her case came up for trial, the agent supplied her with competent counsel who explained the case and defended her. She was, however, convicted on the testimony of this officer, although she herself addressed the Court, and protested against the testimony, explaining her case in a simple, earnest, and truthful manner. Judge Ludlow, seeing her great distress, humanely sympathized with her, and directed an officer of the Court to accompany her to her home to ascertain the facts, see the sexton of the ground where she said the child was buried, &c., promising to release her yet, although convicted, if her story proved true, but if false, to increase her sentence. The officer, after going a short distance with her, took her back to the Court, and reported that she was unable to direct him to a single person who had known her to have buried a child.

The judge then sentenced her for three months to the County Prison.

After this, the agent investigated the case, and found that every word she had said to the Court was literally true, as to the death, and the time and place of burial, &c. The physician was seen, who at the time of its death had given the certificate; the sexton who had buried it was also seen, and the clergyman who had authorized the burial, and paid the charges of the undertaker, with the understanding that she was to pay him again, he having perfect confidence in her promise to do so. When the agent had given to the Court satisfactory proof of these facts, Judge Ludlow reconsidered her sentence and discharged her from prison. Thus, through the services of the agent, this poor but respectable woman was saved not only from the pains and privations of a three months' imprisonment, but also from the odium of

being an impostor and a convict, which would probably have been attached to her character during the remainder of her life.

We shall introduce one other case, for the purpose of illustrating the value of this agency, beyond the mere liberating of persons from prison, which is that of a “peacemaker” between the prosecutor and the person whom he had procured to be committed, which is a frequent result of the settlement of cases.

This was that of a German soldier who borrowed money from two different persons for the purpose of getting a commission as captain in the army, and promised to pay them as soon as his commission was obtained. He failed, however, to procure one, and having expended the money, he was unable to repay them. They therefore had him committed to prison on the charge of “false pretence.” The man had a wife and seven children in New York depending upon him for support. He had an abundance of recommendations of good character. The agent saw his prosecutors, and succeeded in getting them to go to the prison and talk with him. They soon became very much interested in him, gave him some money, went to the District Attorney and asked for his discharge, and paid all the Court charges and expenses, becoming satisfied, upon reflection, that nothing wrong was intended by the prisoner. They invited him to their houses, and proffered him their friendship for the future.

Many other cases are almost equally entitled to a place in this Report, as strikingly illustrating the value of the agency to the cause of humanity, and also to the community, in the large annual saving of expense to the County, resulting from the discharges effected by it, before the cases reach the Court. The cost of maintenance and of prosecution, thus saved in the year 1861, amounted to upwards of \$11,000. Its value is fully appreciated by the public authorities, as the following paragraph from the Presentment of the Grand Jury for the June Term, 1862, will testify. In speaking of their visit to the County Prison, they say: “During a part of their visit through the prison they had the company of the prison agent, William J. Mullen, and were glad to find that he still continues in the discharge of his arduous duties, thereby saving great expense to the County, as well as affording protection to the rights of the poorer classes of society.”

Lunatics.—We last year referred to the practice which prevailed of committing lunatics to the County Prison, to the great disadvantage of that institution, and stated that this Society was co-operating in an application then about being made to the Legislature, which, it was hoped, would result in relieving the prison of this class of its inmates. The contemplated application was made, and a Committee attended at Harrisburg to make such explanations as might secure the favorable notice and action of the Legislature, but without success. Subsequently, however, the prison agent, after considerable effort, succeeded in inducing the Board of Guardians of the Poor to rescind instructions which had been issued to the officers of the almshouse, prohibiting the admission of persons sent from the County Prison, so far as to give their President power to admit (under certain restrictions) such persons as he might deem proper, on application of the Inspectors of the County Prison, to that effect.

Under this arrangement, thirty-one insane persons, some of whom had been imprisoned for years, have been sent from the prison to the Insane Department of the Almshouse within the past year.

House of Correction.—The establishment of a House of Correction, (an institution intermediate to the almshouse, and prison,) was referred to last year, as an object of much interest to the community, and a hope was expressed that this highly important advance in the reformatory movements of our Commonwealth, might, under the Act of March, 1860, be soon carried into effect. It is cause for regret, however, that no substantial advance has yet been made. The delay in purchasing the ground, and erecting the necessary buildings, is understood to be occasioned by the City Councils having failed to make an appropriation of the requisite funds. The measure is so important, that we earnestly hope that the different parties having the control of it, may, by hearty and united action, be enabled to bring this long desired establishment into early and successful operation.

Prison Society's Visitors and Visiting.—We propose now to refer to the subject of visiting the prisons and the prisoners, the duties of which we feel to be of constant obligation, and if faithfully discharged, under right qualification, we believe to be of importance, second to nothing else, which devolves upon the Society. As heretofore, the Acting Committee,

(consisting of the officers of the Society, *ex officio*, and forty-four other members), has been divided into two sub-committees: one of them being allotted as visitors to the Eastern Penitentiary, and the other to the County Prison. These Committees have been regularly organized, and each of them has held Stated Monthly Meetings, at which Reports have been received from the individual members, as to the character of their services during the month, and these Reports, or a summary of them, have been transmitted to the Monthly Meetings of the Acting Committee. From the accounts thus received, there is reason to believe that the interest in this service has in no degree abated, and that the duties of the visitors are discharged with increased efficiency. Owing to the long continued indisposition of one or two of the members of the Penitentiary Committee, and the protracted absence from the city of others, the aggregate number of visits paid there is not quite equal to that reported last year. There have been, however, 175 written Reports received from members of this Committee, by which we are informed that 656 visits were paid by them to that institution during the course of the year, in which 7,031 interviews were had with the prisoners, 4,728 of which took place within the cells, and 2,303 at the cell doors. We have no doubt but that many other visits were paid, but omitted to be reported.

The manner of meeting the prisoners is in a kindly spirit, approaching them not as convicts, but as men, the consequence of which is, that the entrance of a member of the Committee into a cell proves, with rare exceptions, a source of real satisfaction to the inmates; confidence being by this means established, an avenue is opened to their better feelings, and on being inquired of, they freely give a history of their past lives, and state what were the immediate influences under which the crime was committed, which resulted in their being confined in a felon's cell. The information thus obtained, has fully convinced us, that a very large proportion of the vice existing, and of the crimes committed, if traced to their root, will be found to spring from Intemperance.

It must be remembered that this baneful influence is not limited to those individuals who commit crimes while under the immediate effect of the intoxicating draught, nor even to such, and those who by their ruinous habits, have brought themselves into such a state of destitution and

degradation, that their necessities present strong temptations, and at the same time their sense of the obligations of integrity and the rights of their fellowmen, is so weakened, that the fatal step is easily taken. But to these two classes must be added the children of such, who, growing up under the influence of the evil example of the parent, feeling the degradation which he has brought upon his family, and suffering from the destitution which he has entailed upon them, and at the same time, being without the benefit of any sound moral and religious instruction, and permitted to roam the streets in idleness, without the knowledge of any business, are easy victims to the attacks of the tempter. When will the proper authorities of the land, by the enactment of suitable and effective laws, lay the axe to the root of this giant evil?

In these interviews with the prisoners, such counsel is given, as seems suited to their condition, so far as the visitors feel themselves qualified, not unfrequently, as we trust, seeking for Divine aid in the performance of the service. We believe that *many*, during their confinement, are improved in their *moral* perceptions, and reach the conviction that “honesty is the best policy,” and are thus brought to resolve to endeavor to lead a correct life from the time of their discharge, and we hope that not a few of these, with the Divine blessing on their efforts, have not again relapsed into their former course of vice and crime, and that some, even amongst those who may not have yet attained to the true ground of reformation, an abhorrence of themselves in the sight of God, may, through Divine mercy, before the close of life, experience that change of heart which will render them acceptable in His sight. And we feel assured, that we have witnessed some instances of *true conversion*, which have resulted through the co-operation of Divine grace, with the instrumentalities connected with our prison system, and we cannot doubt but that the labors of our Prison Society have had some agency in effecting this happy change.

One peculiarly interesting case of this kind has recently occurred, which is thought to be of sufficient value to justify special reference to it. This was a young man, No. 4,160, aged 17, sentenced January 6, 1860, for two years and six months. He had been a very bad boy, and had been imprisoned before, (but not under our System,) without being benefited. After being in the Penitentiary several months, he was favored with a sense of the

“exceeding sinfulness of sin,” and of his need of a Saviour, and by yielding to the monitions of Divine grace, he in due time, as we trust, experienced an entire change of heart, and attained to a state of acceptance in the Divine sight. Several months before the termination of his sentence, he was attacked with consumption, which soon gave evidence that he was not long for this world. During the remainder of his term, his disease steadily progressed and he often suffered much, but he was entirely reconciled to his condition, and felt comparatively happy, esteeming it as a great mercy that he had been placed there, where as he said he had found his Saviour. He only hoped that he might not die till he was discharged, and reached the arms of his pious mother at a distance from this city, for her comfort and his own. On the 6th of July last, at the termination of his sentence, he was discharged. This occurred on the first day of the week. A member of our Committee took him from the Penitentiary to his own house, and kept him there until he could be suitably forwarded to his mother. This member in referring to him remarks, “One evening, after our family reading [of the Scriptures], I went up with him to his chamber and knelt with him at his bedside in prayer, when we each offered up a petition to the Throne of Grace. I was about leaving the room when he said, ‘Don’t go yet, stay and have a good talk.’ I did so, when we had a full and free interchange of thought. I questioned him as to what he was resting his hopes of pardon on, and found that it was on the only sure foundation,—Christ Jesus and his atoning sacrifice.” He reached his mother, and was with her nearly a month when he died on the 8th of August last. The following is an extract from a letter written by her to the member referred to, a few days after his decease: “I know you and Mrs. —— will sympathize with a sorrow-stricken mother. My darling child is no more. He sweetly fell asleep in Jesus, at 4 o’clock on Friday, August 8th, after three days’ great suffering, which he bore without one murmur. His answers to all were surprising, his conversation humble and childlike. His confidence in his Saviour never wavered; patient, gentle, and loving to all, but to his poor mother he was all love. How hard I feel it to say, Thy will be done! His consoling words to me were, ‘My dear mother, don’t weep but look up.’ In the valley he felt his Saviour’s presence.” Soon after, she addressed to the same another letter, from which the following is an extract: “I did not know how dear I loved him until we were called on to part. His patience under such suffering was surely the work of grace, so gentle, so meek. For a week he seemed to be getting

somewhat better, and a ray of hope shot up, he would be spared for some time at least. But four days before his death, ... his agony was great, but not one word of complaint escaped his lips. His whole conversation was his Saviour's wonderful love. His anxiety for the children's conversion, especially his brother Thomas, was great, and his prayer that God would make him the instrument in converting one soul was lovely to me, nor have I one doubt but that [his] prayers will be answered.... For the whole day before he died, he kept on saying, 'Dearest mother, look up but don't weep.' At 4 o'clock he called for his brothers and sisters to bid them farewell, which he did, shook hands and kissed each one with a prayer, that his Saviour would grant them grace so to live, as they would meet him in heaven,—but to Thomas he said, 'Kneel beside me, dear brother.' Thomas did so, and then James said, 'Dearest Thomas, will you promise your dying brother to seek the Lord, to give him your whole heart?' Thomas said he would try; then he lifted his dying eyes to heaven and said distinctly, 'O Saviour, grant him grace to keep this solemn promise.' He seemed in great pain. I asked him how the Saviour appeared to him in the dark valley. Aloud and clear he said, 'Dearest mother, Jesus is precious.' These were his last words. He became insensible, and continued in a sort of stupor until a few minutes before 4 o'clock, when I whispered in his ear, 'Do you know your mother, my son?' He turned such a lovely look of recognition, moved his lips for me to kiss him, I did so, one gentle sigh, and all was over."

In the introduction to this branch of the Report, we speak of visiting the *prisons* and the *prisoners*. The Law incorporating our Prison Society, and that conferring on the Acting Committee the character of Official Visitors, contemplate that in addition to the salutary influence we may endeavor to exert upon the prisoners, by social intercourse with them, and impressing upon them moral and religious instruction, we should also observe the workings of our Prison System, bring anything which appears to be wrong to the notice of the proper authorities, that it may be remedied, and suggest any reforms or improvements in the System which may appear to be desirable. Under this view of our duties and privileges, our Committee, besides observing the general condition of the Institution, as to good order, cleanliness, healthfulness, &c., make special inquiries as to the supply of labor furnished the prisoners, whether the ignorant and illiterate among them receive proper attention from the teacher, how they are progressing in

their learning, and if those who can read are freely supplied with books from the prison library, and have copies of the Sacred Scriptures placed in their cells. All these inquiries have resulted satisfactorily, excepting that the teaching force is not sufficient to give such frequent lessons to those requiring them, as would be desirable. The progress which many of them make is very gratifying, and indeed surprising. The instances are frequent, where prisoners who entered wholly without school-learning, that is to say, without any knowledge of letters or figures, in a very few months, are able to read, write, and cipher, with considerable facility, and a very gratifying circumstance connected with this is, that most of them highly value the knowledge they are thus acquiring.

The library is now in a very good condition, having been overhauled during the year and a new catalogue prepared, after withdrawing several hundred mutilated and imperfect volumes from the collection. It now contains about 2,600 volumes, all complete and in a good state of preservation, about 2,060 in the English, and 540 in the German and French languages. While the library was regularly open, 11,526 books were loaned, and in addition, considerable reading matter was furnished during the several months in which they were engaged in examining and re-arranging the books, of which no regular record was kept.

The various officers of the Penitentiary, by their general kindness and good temper in their care of and intercourse with the prisoners, evidence their fitness for their position, and as "like begets like," similar deportment is reciprocated by the prisoners towards them. This is one of the excellent features of our System, which rarely, if ever, calls for the exercise of harshness by the keepers, and, consequently, instead of vindictive or bitter feelings being excited towards them, on the part of those under their control, a mutual feeling of sympathy is frequently brought into action. This was recently very pleasantly exemplified in the presence of a member of our Committee. A keeper, who had charge of about thirty prisoners in one of the corridors, received intelligence of the death of a son in the army, and having obtained leave of absence for a few days that he might go to Virginia to bring home the remains, before leaving, called at the cell of each of those under his care and bade them farewell. Both the words and deportment of the prisoners evidenced that they sympathized with their caretaker in his

bereavement. It is also a general practice with the keepers in the evening, as they pass from cell to cell to hand in a light and lock the doors, to exchange a parting salutation with the inmates. We think it must be self-evident, that such a condition of things is much more favorable as a school of reform than that where the harshness of discipline prevails, which is said to be inseparable from the *Silent System*. The former is like the mellow soil moistened by the gentle shower, which receiving the seed kindly, when deposited by the hand of the husbandman, it soon germinates, and in due season brings forth fruit, which abundantly rewards him for all his toil. Whilst the latter is like the arid, indurated clay, upon which equally good seed may have been scattered, but being dry and impenetrable, it either never springs up, or at best it has a stunted growth, and its yield never compensates for the labor bestowed upon it. The entire number of prisoners in the Penitentiary during the year 1862 was 586. The largest number at any one time was 451, on the first day of the year, and the smallest 353. The number in confinement there on the first day of this year (1863) was 369, to wit: white males 297, white females 18, black or colored males 51, and black females 3. There were 6 deaths and 18 pardons in the course of the year.

The Committee on the County Prison have attended faithfully to their duty as visitors during the year, but the reports from them are not so minute as those from the Committee on the Penitentiary, and, consequently, we are unable to analyze them so as to set forth the particulars of their services. One of the members so thoroughly devotes his time to the duty, as to visit the prison more than 500 times during the year, generally twice a day for more than 250 days. The other members report having among them paid 419 visits in the course of the year.

Under the care of the present judicious and efficient Board of Inspectors, the prison has been satisfactorily conducted; but the population is so unsettled (being largely composed of vagrants, the untried, and those committed for petty offences), that it cannot be considered to fairly illustrate the "Separate System," and therefore we think it proper to make more especial and extended reference to the Penitentiary than to it.

The Prison "Association of Women Friends" (which is recognized by us as an auxiliary in the good work), have continued to be diligent visitors to the females confined in both prisons, and have entered on the service under a full sense of its serious importance, and with desires that their labors might be promotive of the temporal and eternal good of the visited. In the course of the year they paid 987 visits to the prisoners in the two institutions.

In addition to the moral and religious instruction communicated to those confined in each of the institutions, through the medium of our visitors and those of the association just referred to, the Eastern Penitentiary has, as one of its regular officers, a "Moral Instructor," whose time is devoted to visiting the prisoners individually in their cells, and there instructing them in those things which most nearly concern their temporal and eternal interests. The present incumbent of the office is John Ruth, a worthy minister of the Methodist persuasion, who appears to be well fitted for the discharge of the duties of his station. Ministers of different denominations also frequently visit the Penitentiary, both for the purpose of having religious opportunities with individual prisoners, and for the more general and public discharge of the duties of their calling. In the County Prison, although there is no regular officer employed for the purpose as in the Penitentiary, yet the institution is pretty well supplied with volunteer religious instructors from different sources, and, on the first day of the week, the prison agent generally procures the attendance there of one or more ministers.

In our Report last year, we informed that the Quarterly Journal, which had been published by the Society for a number of years, was discontinued, and an Annual Report and Journal substituted for it. The principal reason then assigned for the change was, the large absorption of our funds which its publication occasioned, while our means for aiding discharged prisoners and sustaining other objects of practical benevolence in carrying out the original object of our organization, that of "Alleviating the Miseries of Public Prisons," were entirely too limited. The result, we think, has already confirmed the propriety of the course then adopted. Our financial condition has considerably improved, and our appropriations in 1862, in aid of discharged prisoners, were upwards of fifty per cent. greater than in 1861.

EDWARD H. BONSALE,	] Committee on Annual Report, &c.
JOSEPH R. CHANDLER,	
TOWNSEND SHARPLESS,	
CHARLES C. LATHROP,	
ALFRED H. LOVE.	

PHILADELPHIA, *1st Mo. (Jan.) 15, 1863.*

For the Prison Journal.

MAGISTRACY.

The Magistrate must have his reverence, the laws their authority.—BURKE.

Moses, in reply to the question of his father-in-law, “Why sittest thou thyself alone and all the people stand by thee from morning unto even?” said, “Because the people, when they have a matter, come unto me; and I judge between one and another, and I do make them know the statutes of God and his laws.” In him we have a model magistrate. But finding the labor “too heavy” for him, by the advice of Jethro, he confined his duties in this respect to those of an appellant judge, to be for the people “Godward,” to “bring the causes unto God,” and to hear “every great matter,” and he did “provide out of all the people, *able men, such as fear God, men of truth, hating covetousness*, and placed such over them to be rulers,” or minor magistrates, “and made them heads over the people,” “and they judged the people at all seasons; the hard cases they brought unto Moses, but every small matter they judged themselves.” In this record of the first institution of the office of the magistrate, and the qualifications considered as requisite in the man to fill the position, we have a lesson that it becomes us diligently to consider at the present day. If there has been degeneracy of the world since the days of Moses, in no respect perhaps has it been more forcibly felt, than in the mode of administering justice, (or as it would be more

properly termed *injustice*,) at the present day, by the police or committing magistrates. The evils resulting to the community, the cruelty done to the unfortunate being who falls into their hands, by the system prevailing and carried out by many of the magistrates, especially of this city, have become so aggravated as to demand a thorough reformation. “Moses chose *able* men,” whose qualifications were known “out of all Israel.” Men who acted in the “fear of God,” and “who hated covetousness;” or would not take “*fees*” or levy severe contributions on their victims, or the victims of others’ wrongs, or commit them to prison on false or trivial charges, to exact the payment of “charges and costs.” He did not leave the *election* of the magistrate to any body of the people whom they were to judge, much less to the worst or dissolute portion of them.

The very word “magistrate,” (from *magister*, master,) implying control, direction, suggests to the mind the idea of equity, safety, and purity. It excites reverence and a sense of exalted dignity, and imposes such a power and responsibility as never should be exercised by a bad or incompetent man.

In countries where the magistrate is *appointed* by the head or ruling power for his qualifications, and is *independent* of the people over whom he presides, this feeling or sentiment, as a general thing, has been justified. The people living under the administration of such, lay themselves down and sleep in peace, and arise and go to their avocations, feeling that their rights, their property, and their lives are secure, because the righteous magistrate dwells in the land!

Under our democratic ideas, that because “the people are sovereign,” we must therefore permit them, in carrying out these ideas, to exercise the power of electing all of our officials from the highest to the lowest, we run a great risk of placing the liberty and the welfare of the citizen, in the hands of bad and immoral men. However capable the people may be *as a whole* to judge of the qualifications and fitness of any certain person for a magistrate, *if they would as a whole exercise their sovereignty*, no one, we presume, will claim that the portion of the “sovereigns” who congregate in “grog-shops,” and act under the inspiration of intoxicating beverages, in procuring nominations, are properly exercising the sovereign power, or that “the voice

of *the people*,” thus expressed, is “the voice of God.” That *some* good magistrates, as we truly have, are elected under the present system, but illustrates the truth *that it is possible* to elect the right kind of men to office, if the better class of citizens will but exercise the privilege of the franchise, which under our theory of government it is the *bounden duty* of every good man to do.

The evils arising from the magistracy, as at present administered, are the results of two causes, which ought to be removed:

1st. The mode of selecting or making magistrates.

2d. The mode of compensating them.

From the nature and duties of their office, they should be removed as far as possible from any dependence upon the favour, the votes, or the fees of the people over whom they judge or rule.

Being a part of the ruling power, having delegated to them the “mastery” over the people, they should receive their authority or appointment from, and be dependent upon, the supreme authority or head magistrate, or “Master” of the City or State, and his constituted advisers, the council or senate, and removable only for cause. Being thus appointed by him who represents the sovereignty of the people, and by his position and responsibility to the people for his acts, we might reasonably expect to find men appointed, capable of discharging the duties, and worthy of the sacred trust of a magistrate. Again, as to the second point, the magistrate should not in any way be dependent upon, profited by, or have any portion of the “*fees*” of his office, but should be appointed for a certain precinct, ward, or district, and receive a certain *fixed* compensation or salary from the public treasury. All “fees” or charges, being the penalty for breaking or infringing the laws, should be collected and paid over to the public treasurer by the magistrate, leaving him free to act uninfluenced by them, as the impartial agent of the law, as between the ruling power or sovereignty of the people and the accused, and enable him to act as a peacemaker, or reconciler of difficulties. Under the influence of the “fees” to be derived from “committing” the person accused, is there not danger that self-interest may sometimes induce the magistrate to commit unnecessarily, or otherwise

encourage bad feelings between the accuser and the accused, when a more independent position might lead the magistrate to secure a reconciliation and settlement of the difficulty?

All persons thus appointed and acting, should have power to act not only as committing magistrates of persons after examination, to be tried by a higher court or magistrate for heinous offences, but they should be authorized and required to try all trivial or minor cases, summarily, and to decide upon the same, and pronounce sentence accordingly, without appeal except in specified cases. A system similar to this prevails in other cities, or did at least in New Orleans before the rebellion, where Recorders or criminal magistrates acted or presided over certain defined districts; justices of the peace acting in civil cases only, one being entirely separated from the other, and the same person not allowed to act in both positions. The system was found to work to advantage there, though the incumbents of the position, contrary to what we deem wise, were elected by the people. As adjuncts to such a system, a Work-house for mature offenders and vagrants, and a House of Industry (or Refuge) for juvenile ones, to which the magistrate could sentence them, would be needed to relieve our County Prison of the *surfeit* of cases now sent there, and to relieve the public, by the fruits of their labor, from their cost of maintenance; and so situated as to lead as far as possible to their reformation, and to the formation of habits of industry, regularity, and temperance. Such institutions could, as elsewhere, be made to pay a profit to the city, instead of as now maintaining the victims of the magistrate at heavy cost, in idleness and amidst evil associations. The workings of the present system prevailing in our city, are forcibly presented by the Reports of the Inspectors of the County Prison, and those of the prison agent of the same,² from the latter of which we select only the following, which are but a sample daily occurring:

1. One of these cases is that of a young soldier committed [May 15th], on the charge of homicide. The Agent went to Washington, visited the camps, and saw that witnesses therefrom were brought here. These were brought here under the charge of an officer, specially detailed by the Court for the purpose, to prove an alibi in his behalf. It was not, however, found necessary to present this evidence, as another witness was found who

testified to seeing the murder committed by a different person. The prisoner, in consequence, was at once acquitted.

2. Another case was that of a United States marine, the victim of a conspiracy, whose object was to have him arrested and imprisoned as a deserter, in order to recover \$30, which are usually allowed in such cases by Government. The chief actors here—as it appeared—were a sergeant and two tavern-keepers, who sued him before two different aldermen for an indebtedness, amounting to \$17 for board and for money obtained—as they say—under false pretence, which consisted in his promising to pay after receiving his wages from Government. At the settlement the sergeant claimed \$135 out of \$140.80; exacting one-fourth of the sum loaned for its use, and leaving but \$5.80 for the prisoner to cancel the \$17 debt. This \$135 was paid to the sergeant for the use of \$101.25 advanced to the prisoner within 19 days subsequent to his being paid—all of which he had spent. A ten days' furlough was granted to him, and then he was imprisoned, as above mentioned.

In investigating the case, the Agent learned from the prosecutors, that they intended to get paid by keeping him in prison till after his furlough expired, and then getting the major to arrest him, as a deserter, with a promise that he would see them paid out of money, which the prisoner would eventually have to pay, after being put in irons and confined, for three months, in the barracks—which is said to be the customary punishment in such cases.

3. Another case was that of a United States Army captain, who was imprisoned on the charge of *enticing* soldiers out of a regiment in one State into a regiment of another State. It appears that, from patriotic motives, he had resigned the command of his company in Virginia and went to New York to raise a regiment of which he was to be major. While he was in Philadelphia the orderly-sergeant of his former company sent him a letter, inquiring how he progressed in forming his new regiment, and also informing him that, after pay-day, many of his old command would quit their company.

This portion of the letter came to the knowledge of one of our city aldermen, who construed it, as enticing soldiers from one company into another, and thereupon unjustly committed the captain to prison.

On the Agent stating the truth of the case to the alderman, and asking the prisoner's immediate release, as his services were needed in our country's defence; the magistrate refused to discharge him, unless he or his friends would pay the costs, and thus submit to the illegal extortion of money, as also to the imputation of having violated the laws. Whereupon the Agent, after consulting the United States Court officers, applied to the Court of Quarter Sessions for a writ of habeas corpus, had the case examined, and the prisoner was discharged by the authority of Judge Thompson.

4. Another extraordinary case was that of a woman charged with kidnapping and robbery. The alleged kidnapping—as was proved in Court—consisted in her taking possession of her own son, of 16 years old, a runaway, found by her in Schuylkill County, and the robbery in the taking of his clothes, which she had a right to take, as was shown by her acquittal in Court, at her hearing upon a writ of habeas corpus, procured by the Agent; when the fact of his being her son was established, not only by herself, his mother, but by his brother, of 19 years old, and by a respectable citizen and others, who had known him from infancy.

5. Another case, presenting, perhaps, still more striking features, was that of a woman committed, on a bail-piece issued by one of our city aldermen, November 20th, and discharged November 21st, by bail being entered for her appearance at Court. The original charge against her was for assault and battery on a neighbor woman.

According to the prisoner's account, she got into difficulty with this neighbor about some children belonging to another party. They struck each other, and then the prisoner was sued by the other woman before an alderman, who granted a warrant gratis, as at the time she had no money. The prisoner was required to give bail, or go to prison. She then arranged with the alderman's constable (at his suggestion) to pay him \$2 for being her bail, on her receiving money, which she expected daily from her husband and son, who were in the United States Army. She also agreed to pay the alderman \$1.80. On her receiving, soon after, a remittance from her son, she promptly paid the amount agreed upon.

She was then told, by the alderman and constable, that she must now enter freehold bail for her appearance at Court. She replied, that she thought that

unnecessary, as she and her prosecutrix had settled their quarrel, and were now as friendly and intimate as sisters, visiting each other in their respective premises almost every hour in the day. But, notwithstanding all this, and although, being a simple case of assault and battery, it was fully within the magistrate's power to settle it, he would not do it, but insisted on having freehold security.

She then consulted a distinguished lawyer on the case, who addressed a note to the alderman, requesting him to dismiss it. He would not comply with the request, but persisted in exacting freehold bail.

The alderman's constable then proposed getting his brother-in-law for her bail, on condition that she would pay him \$5 for the service. Becoming frightened, as she had three small children, with no one but herself to care for them, her husband and son being in the army, she assented to his terms and paid him the money—which (be it noted) was in addition to the \$3.80 previously paid to the alderman and constable.

She was then allowed to depart for a few days, at the end of which the constable visited her, early one morning, and told her the bail was about to give her up unless she would pay some more money. She gave him all she had, a half-dollar, which she at the time actually needed to get food for her children. He took it, but said it was not enough, and he must, therefore, have her husband's coat, which was hanging within view. She gave him this, and he then further insisted on having some breakfast, which she also gave him.

He left, but not long after returned, and declared she must go to prison, as her bail would incur no further risk unless he received more money. She replied that she had no more money to give; but, instead of this, she gave him her husband's pantaloons and drawers, which he took, and thereupon insisted on having her husband's razor and shaving apparatus, which she gave him. He concluded his call by demanding his dinner, which she also gave him, and he went away.

A few days subsequently, his brother-in-law (the bail) called, and told her he was going to surrender her to be sent to prison, unless she either gave him more money, or complied with certain infamous proposals of his. The

latter she promptly refused, with the remark that she would not dishonor her husband and son, who were then enrolled for the defence of their country.

He then left, and went to the alderman and had her sent to prison, cruelly separating her from her sucking infant, who was left at home with her other two young children, and no one else.

The Agent, on learning these atrocious facts, at once saw that the prisoner was released on bail, and permitted to return home to her family.

6. Another case was that of a woman, the mother of a large family of little children, who was committed by one of our aldermen on the vague charge of misdemeanor. Her husband is a soldier in the United States Army. It seems that her landlord wished to remove her from the house she tenanted in a summary manner, and he appears to have formed a conspiracy with the prosecutor for this object. She refused to leave till she got a remittance from her husband. A quarrel ensued, and the prosecutor struck and beat her most shamefully. A proof of this was that her person, when she entered the prison, was black and blue with bruises. After the prosecutor had done this, he went to the alderman and sued her on the charge above named. This he did to secure himself from being prosecuted by her for assault and battery.

Let the community arise! Let our City Councils and our State Legislature act, and perfect such legislation as will remedy this crying evil, and rid our beautiful city, so distinguished for progress in arts, science, and benevolent institutions, of this polluted sore.

C. C. L.

For the Prison Journal.

IMPRISONMENT.

So far as we are acquainted with the actual condition of the various countries of the civilized world, we are compelled to the painful and humiliating conviction, that there are individuals amongst their inhabitants who are prone to, and actually will interfere with, and depredate upon the

rights of others, unless they are subjected to moral or physical restraint. This fact has made it necessary that measures should be adopted to protect the general mass of society against the wrong-doing of these evil-disposed persons. It must be evident to all, that in originating and maturing these measures, or in framing and perfecting laws for this purpose, an intimate acquaintance with human nature, and a high order of wisdom, are essential pre-requisites to fit those upon whom the duty should devolve, to enter upon the highly important work. The instinct of self-protection would naturally, and even properly suggest, that the first object should be to secure the community against a repetition of the wrong-doing, by placing the individual who has committed a serious offence under such physical restraint as to make it impossible for him for a time to continue his evil course. This object may be secured by a close confinement of the culprit in a prison or penitentiary. But if we rest satisfied with having accomplished this, we are taking a very narrow view of a very broad subject. This same instinct, if its promptings are intelligently pursued, will convince us that the punitive character of this restraint or imprisonment should be such as to operate upon the fears of the evil-disposed who are at large, and thus deter them from yielding to temptations which may prompt them to commit offences against society or individuals. And, also, as this imprisonment cannot be permanent, the individual incarcerated should, through this source, as well as others, be made to feel that “the way of the transgressor is hard;” and from this experience (in the absence of any higher motive) be induced to so conduct himself, after his liberation, as not to render himself liable to be subjected to a repetition of these “pains and penalties.” At the same time, however, that the imprisonment and discipline provided, should embrace such elements as would subject the convict to a full sense of punishment, they should be carefully guarded from partaking of the character of vindictiveness or revenge. If this care is not exercised, the higher and more enlarged action of Christian philanthropy and duty, which should immediately follow that referred to as being prompted by the instinct of self-protection, which is, the temporal and eternal good of the offender, by his reformation, will be entirely defeated.

We are aware that in some countries, in framing their penal laws and discipline, the only object appears to be to prevent the continued perpetration of offences by the imprisonment of those convicted as

offenders, and by the severity of their punishment to deter them from a repetition of their crimes after their discharge; the example of which punishment, it is desired, shall also operate to restrain others from entering upon and pursuing an equally criminal course. This object is effected, at the smallest possible cost to the community, by constructing their prison buildings, almost exclusively, with reference to the safe-keeping of the prisoners, making no arrangements for their separation, but congregating them together in large masses, with very little, if any, regard to difference in age or degrees of criminality. The consequence is, that instead of the prisoners being reformed or made better, by the discipline to which they are subjected, they are almost inevitably made worse; and many times, those who were committed on a charge of pocket-picking or some other minor offence, are fitted for burglars or the commission of the highest class of crimes on their discharge.

A valuable member of our Prison Society who has recently spent several years abroad, during which time he became very familiar with the penal system and the arrangement and manner of conducting the prisons of one of the countries of Continental Europe, having frequently visited and personally inspected the prisons, speaks of it as being generally admitted amongst the people there, that reformation was no part of their plan, and was never expected to result from the imprisonment of criminals. We are happy, however, in the belief, that this system is now viewed by nearly all countries as being a relic of the barbarism of the dark ages, which, besides partaking of the character of cruelty, evidences great short-sightedness and want of wisdom, if we consider how its results affect the best interests of the community. Instead of being a school of reform, through whose influence the number of those from whom outrages might be apprehended would be lessened, if it does not actually increase them, it at least makes life-long criminals of the most hardened character, of a large proportion of those subjected to its discipline, who, at the time of their first commitment, were by no means steeped in wickedness; many of them when quite young, having, in an unguarded moment, yielded to strong temptation to commit some minor offence, of which having been convicted, they have been thrust amongst the most abandoned outcasts of society, and soon lost to all hope of restoration, when by a really humane and Christian course of treatment they might have been led back from the by-paths into which they had,

without due consideration, stepped, and have been brought to experience the happiness of a virtuous life, and to be a blessing instead of a curse to society.

We believe that all reflecting men must be convinced that the *reformation* of criminals, besides being a question of *expediency*, in which the community has a deep stake on the score of self-protection, is one, the promotion of which, so far as is in our power, is of the highest Christian obligation, in reference to both the temporal and eternal good of those who, having by their criminal conduct, forfeited the liberty enjoyed by the common mass of their fellow men, have, for the security of society, been committed to prison. In most Christian countries *reformation*, on the ground of *expediency* at least, and we trust, under some sense of Christian duty, is now acknowledged to be properly *one* of the elements of their penal systems; and, consequently, some provisions, either theoretical or practical, are adopted for the promotion of this object. It is much to be regretted, however, that most of the existing prison systems are such as greatly to interfere with, and many of them almost wholly to defeat the accomplishment of this vitally important purpose. This state of things exists to a great extent, not only in Europe, but throughout most of the Commonwealths of the United States.

The systems are generally “*congregate*,” either with little, if any, restraint from free social intercourse between the inmates, whatever may be their different degrees of depravity, or with the imposition of silence while together, and separation at night and at their meals only. The former of these, in our judgment, wholly excludes reformatory influences, unless it be through the immediate operation of Divine grace and mercy, which, we freely admit, can overrule obstacles however great; but this fact will not excuse us from doing our best to facilitate this operation. At the same time, also, that it excludes reformation, its attendant circumstances rapidly school the young offender in the ways of depravity and crime, and harden the more practiced in wickedness, and prepare them for the commission of still darker deeds than any they had previously been guilty of. Whilst the latter system, where *silence* is imposed, though certainly a step in advance of the former, as it cannot so extensively *propagate* criminality, yet from the fact that the prisoners cannot be approached separately, and that this system of

silence and non-intercourse amongst them, under the strong temptation to the indulgence of their social propensities when placed in the presence of each other, is only maintained by harsh and severe discipline; reformatory agencies can hardly be brought to bear upon them, and efforts in this direction, very rarely, indeed, produce the desired effect.

It seems to us that what is generally known as the “Pennsylvania System,” which is that of entire cellular separation of the prisoners, by which they are precluded from either seeing each other, or holding any kind of intercourse by word or sign, is far in advance of any other system of imprisonment yet introduced. We do not propose at this time to go into a general explanation of its peculiar features, but may merely advert to a few prominent points in support of this position.

First, as regards the effectual restraint of those found guilty of crime from continuing their outrages upon the community; its security against escape, is fully equal to, if not greater, than that under any other existing prison system, and its punitive character, though really humane and mild, is looked upon with much dread by the evil-disposed, on account of their being subjected to separation from their fellow convicts, and therefore it is potent in deterring from a criminal course.

These primary objects of imprisonment being thus effectually secured, we are next to consider what are its effects, evil or good, upon the moral condition of those subjected to its discipline. And here the results of our inquiries are pre-eminently satisfactory. From the thorough isolation maintained, we think it must be evident, that no prison under it can ever become a moral pest-house, where the depravity and wickedness of one prisoner may be communicated to another, or, as it were, prove contagious, and thus spread moral corruption around him. As neither the words, countenance, nor gestures of one can be heard or seen by another, it is clear, that those committed are not subjected to such influences whilst in confinement, as will make them morally worse on leaving, than when they entered.

Having thus demonstrated, as we trust, that our system, without doing a moral wrong to the offender, thoroughly effects the purpose for which society claims the *right* to imprison—that of self-protection, by placing him

under secure restraint—we have next to consider what is its adaptation to the higher and less selfish purpose, which immediately follows as a Christian obligation, that of promoting his reformation. In the first place, then, as there is nothing in the working of the system which calls for harshness of treatment; it is administered on principles of kindness, and consequently, instead of the prisoners being hardened, and their vindictive and other evil passions being called into action, they are softened, and the better feelings of their nature (which with many had so long slept, that the degraded beings were hardly aware that they possessed them) are awakened. Under these favorable circumstances, those who are desirous of communicating moral or religious instruction can visit each prisoner in private in his separate cell, and when the service is accomplished, leave him to his reflections, without being disturbed by the presence, or deterred from a serious consideration of his condition by the scoffs of depraved companions.

The purpose of this essay has not been to suggest the details of any particular system of imprisonment, but to call attention to the general principles which should control the subject. And especially have we desired to impress upon the reader the vital truth, that if we would hope to reform the prisoner, we must treat him with comparative kindness. We must do nothing, which either is or seems to be, by way of revenge or retaliation. Under the present dispensation we must not exact “an eye for an eye, and a tooth for a tooth.” If we do this, the prisoner feels that he is persecuted, and that as society is doing its worst by him now, he will repay it upon his discharge. In effect, that as every man’s hand is against him, his hand shall be against every man.

E. H. B.

The following are the introductory remarks of a writer in the “North British Review” for February, 1863, to “Observations on the Treatment of Convicts in Ireland” and the Subject of Transportation, to wit:—

The public mind of England awakes periodically, and with a start, to a sense of the danger it incurs by the presence of a large criminal population in the very heart of the community, which is dealt with on no rational or consistent system, watched by no adequate police, and disposed of in no

conclusive manner. We rave against the evil, we abuse our rulers, we insist upon a remedy being found, we listen eagerly to every quack and every philosopher, we discuss the subject passionately, illogically, and superficially; and we end by adopting some fresh plan which touches only a small fragment of the mischief, and darns only a small rent in the tattered garment, and which is usually some ill-digested and unworkable compromise between old habits and new fancies. We then grow sick of the subject, ashamed of our panic, and stupidly satisfied with our mild aperient and our emollient plaster, and go quietly to sleep again for another term of five or seven years. Meanwhile, however, there are two classes of men who never sleep: the criminals, who are always at work to invent new modes of preying on society and new dodges for evading justice; and the officials, who are always, after the fashion of their kind, and by a sort of ineradicable instinct, wriggling back into the old channels, and falling away into their normal inertness. There was such an awakening as we have described in 1853; there was another in 1857; there is another now. Let us see whether this last cannot be made to yield some better and more lasting fruit than its predecessors.

That the evil is a very great one no one can doubt. It amounts to a positive insecurity of life and property which is disgraceful in the richest, most civilized, most complicated society on earth. At this moment, the number living by depredation and outrage, and known to belong to the criminal class, is estimated to reach in the United Kingdom to 130,000. In this year, 1863, a considerable portion of the respectable inhabitants of London are reduced to carry concealed weapons for their own defence; and this from no groundless apprehensions, but because they *may* any day be called upon to use them, and often *are*. We annually commit to, and liberate from, our county jails in England and Wales, at least 130,000 offenders, a very large proportion, if not the majority, of whom are habitual pilferers, burglars, or in other ways violators of the law, and recognized preyers upon the industrious and peaceful part of the community. Besides these, we turn loose every year, at the expiration of their sentence of penal servitude, or shortly before its expiration, 3000 convicts, nearly all of whom are professional, finished, hardened offenders, and all of whom, with scarcely any exceptions worth naming, have been confined for crimes in which ruffianism and dishonesty were combined. Of these 3000, at least 2500 on

an average are liberated in this country, and almost invariably go back to their evil courses, more vicious, more skillful, more irreclaimable than ever. Many of them have been convicted several times, never dream of adopting an honest mode of life, and could not do so if they wished. In a word, we have among us an army—very active, very well trained, tolerably organized, very resolute, and in part very desperate—of internecine enemies and spoliators, as numerous as the troops of most European kingdoms, and more numerous than the military and police forces in our own country combined. This is the evil we have to deal with. It is an evil, in some degree and in some form, incidental to every large and populous community; but the form and degree depend entirely on our own management. We may reduce it to the minimum which human temptation to wrong and the imperfection of human powers of repression must always leave, a minimum which would be seldom heard of and little felt, and which should be always tending to decrease. Or we may suffer it, as we are in a fair way to do now, to augment and intensify year by year till it reaches the maximum compatible with a comfortable existence and a secure civilization. Now what we affirm is, that, for the height to which it has reached at the present moment, we have only ourselves to thank. For a long time back, in spite of ceaseless warning, and ignoring all the lessons of experience, physiology, and common sense, we have done little to repress crime and much to encourage it. Our plans of dealing with it have been based upon no clear understanding and no settled principle; the changes we have introduced from time to time, have been either inconsistent *nibblings* or mutually destructive fluctuations; we have neither aimed at felling the tree, nor at cutting off the nourishment from its roots; we have simply pruned the branches, and contented ourselves with wondering that it should flourish still. We believe that all this is remediable still, though the mischief has assumed such vast dimensions; but that which is imperatively needed before we can hope to remedy it is, that we should boldly face all patent facts; that we should courageously accept all undeniable conclusions from those facts; that we should at once and for ever place sentiment under the control and supremacy of sense; that no inconvenience should drive us to do injustice to others; and that no expense should make us shrink from doing justice to ourselves.

Criminals, the moment we look at them closely and analytically, divide themselves into two distinct categories—the casual and the habitual. Many of the more trifling, and some of the most heinous offenders, belong to the former class. Temptation there will always be; and this will be liable to increase with the progress and complexity of civilization, as long as some are poor and some are rich, and as long as the appliances of wealth are spread out in the sight of the struggling and needy. Defective moral natures there will always be—natures weak to resist and prone to fall; but these, it is to be hoped, will diminish as comfort and instruction penetrate among the masses. Passions will always exist among all ranks, and passions will occasionally burst through the restraints of morality and law. Boys will steal who are no worse than idle, neglected, and ill-trained. Poor men, who are habitually respectable, will steal under circumstances of sudden and desperate necessity. Clerks will occasionally forge or rob to avert exposure, to meet debt, or to purchase vicious pleasures. Any man, in any rank, of violent or malignant temper and ill-disciplined mind, may, in a moment of provocation or of fury, be guilty of manslaughter; or, if he be thoroughly bad and licentious, may outrage a defenceless woman, or murder one whom he hates, or whose possession he desires. Crimes and criminals of this sort, however, are not those that embarrass our police, and perplex our rulers and philosophers; they do not constitute the social problem we have to solve. They are the casual outbreaks of human vice and passion, incidental to all stages and forms of civilization, and incurable by any. But besides and independent of these cases, we have among us a large population, numbered by thousands and tens of thousands, who *live by* outrage and depredation; to whom crime is an employment and *profession*; who are brought up to it; who have no other teaching, no other vocation, no other resource; to whom the respectable and industrious portion of society is the oyster they have to open; who prey upon the community, and sometimes hate it also. They are simply the enemies of society; and the protection of society against them constitutes precisely the difficulty which at this moment our thinkers have to master, and the duty which our rulers have to discharge.

Now we do not say that the obstacles and embarrassments with which the solution of the problem is surrounded are not actually great, because they are. But the problem itself is neither difficult nor obscure, as soon as we

take pains to place before ourselves distinctly its precise nature and conditions. The thing to be done is simple enough; the impediments in the way of doing it are nearly all of our own creation, arising partly out of ignorance or thoughtlessness, and partly out of willfulness; partly because we have not fully understood what we had to do, and partly because we have been unwilling to accept the consequences and incur the annoyance and expense of doing it. Divested of all complications, our task is to *defend ourselves* against the criminal population,—the professional criminals; to guard society against their outrages and depredations in the most prompt, effectual, and enduring fashion we can devise. That is all: we have NOT to *punish* them; and we shall only confuse our minds and perplex our action if we try to do so. It is the almost universal neglect of this vital distinction, more than any other error, which has led us into such grotesque and inconceivable blunders. *Individuals* may regard these offenders in any light which harmonizes with their several idiosyncracies. Some may look at them as objects of vengeance; some as objects of compassion; some as subjects of conversion; some as patients to be cured; some as unfortunate lunatics to be carefully and comfortably confined; and there may be much truth in all these different views, and they may be allowed to influence some of the *details* of the practical treatment of criminals in prison and on their discharge from prison. But *the State*, as we said, has only got to protect the community against them—to regard them as domestic foes, against whom self-defence is legitimate and necessary. The reason why it should not seek to *punish* them, in the strict and proper meaning of that word, is, that it has not the knowledge requisite for the just discharge of that function. It cannot possibly apportion the penalty it inflicts to the *guilt* of the offender, which apportionment constitutes the very essence of *punishment*. Neither the wisest judge, nor the most patient and enlightened jury, nor the most omniscient police officer, can do more than form a plausible conjecture as to the *moral criminality* of any convict; since this, it is obvious, must depend on the organization which he inherited, on the antecedents which have surrounded him from the cradle, on the degree of instruction he has received, on the special nature and *adaptation* of the temptation, on a multitude of circumstances which we neither can know, nor could estimate if we did. The State, too, is just as incompetent to estimate the severity of the infliction as the guilt of the offence. How is the legislator who awards, or the judge who pronounces, to ascertain the weight and bearing of any

given sentence upon any individual culprit? The same penalty which to one man would be almost too lenient for a theft, may, to a differently organized and differently trained offender, be too severe almost for a murder. The educated convict, whose ungoverned passion led him to a heinous but a single crime, would be driven mad by the association and the *entourage* which the habitual and hardened ruffian would find congenial and even pleasant. Punishment which *retributes*, like vengeance which *repays*, can, by its very term, belong only to that higher intelligence which can estimate aright both the debt to be repaid, and the intrinsic value of the coin in which repayment is awarded.

The thing to be done, then, being ascertained, the next point for consideration is how to do it. Now, society may protect itself against habitual criminals in three ways, separately or in combination. It may deal with him so as to *deter* him, to *reform* him, or to *get rid* of him. It may so arrange and contrive its penalties as to frighten him from bad courses, or to incapacitate him from recurring to them, or to persuade him to amend them. And, putting out of view the very few whom it will or can hang, it has to effect these objects by such secondary punishments as lie within its reach, as the public purse will pay for, and public conscience and feeling will allow the State to inflict.

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Simons, George W.
Smith, Nathan
Stokes, Shmuel E.
Shoemaker, Benjamin H.
Speakman, Thomas H.
Starr, F. Ratchford
Saunders, McPherson
Stokes, Edward D.
Sloan, Samuel
Smith, Joseph P.

Hockley, John
Holloway, John S.
Husband, Thomas J.
Hughes, Joseph B.
Homer, Henry
Homer, Benjamin
Hancock, Samuel P.
Hand, James C.
Hazeltine, John
Hastings, Matthew
Huston, Samuel
Hacker, Morris
Hacker, William
Hunt, William, M. D.
Hurley, Aaron A.
Harbert, Charles

Ingersoll, Joseph R.
Ingram, William
Iungerich, Lewis

Jackson, Charles C.
Janney, Benjamin S., Jr.
Jeanes, Joshua T.
Jenks, William P.
Jones, Isaac C.
Jones, Jacob P.
Jones, Isaac T.
Jones, William D.
Jones, Justus P.
Jones, William Pennel
Johnson, Israel H.
Johnson, Ellwood
Johnston, Robert S.
Justice, Philip S.

Kaighn, James E.

Stone, James N.
Simes, Samuel
Stuart, George H.
Stewart, William S.
Stevens, Edwin P.

Townsend, Edward
Taylor, Franklin
Taylor, John D.
Taylor, George W.
Trewendt, Theodore
Tredick, B. T.
Thomas, John
Taber, George
Troutman, George M.
Thornley, Joseph H.
Thissel, H. N.

Van Pelt, Peter
Vaux, George

Wharton, Thomas F.
Wood, Horatio C.
Wood, Richard, Jr.
Welsh, William
Welsh, Samuel
Welsh, John
Wetherill, John M.
Williamson, Passmore
White, John J.
Wainwright, William
Wright, Samuel
Wright, Isaac
Willets, Jeremiah
Wiegand, John
Wilstach, William P.
Williamson, Peter

Kane, Thomas L.	Warner, Redwood F.
Kelly, William D.	Walton, Coates
Kelly, Henry H.	Williams, Jacob T.
Ketcham, John	Wilson, Ellwood, M. D.
Kiderlen, William L. J.	Woodward, Charles W.
Kimber, Thomas	Whilldin, Alexander
Kingsbury, Charles A., M. D.	
Kinsey, William	Zell, T. Ellwood
Kirkpatrick, James A.	

LIFE MEMBERS.

ON PAYMENT OF TWENTY DOLLARS AND UPWARDS.

Barclay, James J.	Ogden, John M.
Bache, Franklin, M. D.	
Bonsall, Edward H.	Perot, Joseph
Besson, Charles A.	Perkins, Samuel H.
	Parrish, Dillwyn
Cope, Caleb	Powers, Thomas H.
	Potter, Thomas
Ellis, Charles	
	Sharpless, Townsend
Fotteral, Stephen G.	Sharpless, Charles L.
Foulke, William P.	Sharpless, Samuel J.
	Steedman, Miss Rosa
Hacker, Jeremiah	
Horton, John	Turnpenny, Joseph C.
Hollingsworth, Thomas G.	Townsend, Samuel
Knight, Reeve L.	Whelen, E. S.
	Willits, A. A.
Learning, J. Fisher	Weightman, William
Love, Alfred H.	Wilhams, Henry J.
Longstreth, William W.	Wain, S. Morris
Marshall, Richard M.	Yarnall, Charles
	Yarnall, Benjamin H.

ARTICLE IV.

The Treasurer shall keep the moneys and securities, and pay all orders of the Society or of the Acting Committee, signed by the presiding officer and Secretary; and shall present a statement of the condition of the finances of the Society at each stated meeting thereof.

All bequests, donations, and life subscriptions, shall be safely invested; only the income thereof to be applied to the current expenses of the Society.

ARTICLE V.

The Acting Committee shall consist of the officers of the Society, ex-officio, and fifty other members. They shall visit the prison at least twice a month, inquire into the circumstances of the prisoners, and report such abuses as they shall discover, to the proper officers appointed to remedy them. They shall examine the influence of confinement on the morals of the prisoners. They shall keep regular minutes of their proceedings, which shall be submitted at every stated meeting of the Society; and shall be authorized to fill vacancies occurring in their own body, whether arising from death, or removal from the city; or from inability or neglect to visit the prisons in accordance with their regulations. They shall also have the sole power of electing new members.

ARTICLE VI.

Candidates for membership may be proposed at any meeting of the Society or of the Acting Committee; but no election shall take place within ten days after such nomination. Each member shall pay an annual contribution of two dollars; but the payment of twenty dollars at any one time shall constitute a life membership.

ARTICLE VII.

Honorary members may be elected at such times as the Society may deem expedient.

ARTICLE VIII.

The Society shall hold stated meetings on the *fourth* fifth-day (Thursday) in the months called January, April, July, and October, of whom seven shall constitute a quorum.

ARTICLE IX.

No alterations of the Constitution shall be made, unless the same shall have been proposed at a stated meeting of the Society held not less than a month previous to the adoption of such alterations. All questions shall be decided where there is a division, by a majority of votes; in those where the Society is equally divided, the presiding officer shall have the casting vote.

OFFICERS OF THE SOCIETY.

PRESIDENT,—	JAMES J. BARCLAY.
VICE PRESIDENTS,	[TOWNSEND SHARPLESS, WILLIAM SHIPPEN, M. D.
TREASURER,—	EDWARD H. BONSALL.
SECRETARIES,	[JOHN J. LYTLE, EDWARD TOWNSEND.
COUNSELLORS,	[HENRY J. WILLIAMS, CHARLES GIBBONS.

Members of the Acting Committee.

Charles Ellis,	Mahlon H. Dickinson,	Joseph R. Chandler,
William S. Perot,	William Ingram,	Samuel Townsend,
Thomas Latimer,	James Peters,	Albert G. Roland,
John M. Wetherill,	Robert E. Evans,	Benj. H. Shoemaker,
Abram C. Brown,	Charles Palmer,	Lewis C. Neuman,
Benjamin H. Pitfield,	Charles P. Perot,	Wm. Warner Caldwell,
James E. Kaighn,	Charles C. Lathrop,	Henry Perkins,
Alfred H. Love,	William Dorsey,	George M. Elkinton,
Jeremiah Willits,	Abram Martin,	William R. MacAdam,
William H. Burr,	John Adolph Beaux,	J. M. Corse, M. D.,
Jacob T. Bunting,	Wm. Armstrong, M. D.,	E. Griffin, M. D.,
John C. Farr,	Wm. Nicholson,	William Hacker,
George Taber,	Charles W. Funk,	John E. Carter.
William L. J. Kiderlen,	Philip P. Randolph,	

Visiting Committee on the Eastern Penitentiary.

Townsend Sharpless,	George Taber,	William Nicholson,
Edward H. Bonsall,	William L. J. Kiderlen,	Charles W. Funk,
John J. Lytle,	Mahlon H. Dickinson,	Samuel Townsend,
Edward Townsend,	James Peters,	Albert G. Roland,
Abram C. Brown,	Robert E. Evans,	Benj. H. Shoemaker,
James E. Kaighn,	William R. MacAdam,	William Hacker,
Alfred H. Love,	Charles Palmer,	J. M. Corse, M. D.,
Jeremiah Willits,	William Dorsey,	E. Griffin, M. D.
William H. Burr,		

Visiting Committee on the County Prison.

William Shippen, M.D.,	John C. Farr,	Philip P. Randolph,
Charles Ellis,	William Ingram,	Joseph R. Chandler,
William S. Perot,	Charles P. Perot,	L. C. Neuman,
Thomas Latimer,	Charles C. Lathrop,	Henry Perkins,
John M. Wetherill,	Abram Martin,	George M. Elkinton,
Benj. H. Pitfield,	John Adolph Beaux,	Wm. Warner Caldwell,
Jacob T. Bunting,	Wm. Armstrong, M.D.,	John E. Carter.

WM. J. MULLEN is Agent of the County Prison, appointed by the Inspectors, and acting under their direction, and also appointed by the Prison Society.

FOOTNOTES:

[1](#) Less than one-sixth the size of the cells in the corridors which were then completed in our penitentiary, as described by the same writer, to wit: eleven feet nine inches long, seven feet six inches wide, and sixteen feet high to the top of the arched ceiling.

[2](#) William J. Mullen.

Transcriber's Note:

Dialect, obsolete and alternative spellings were left unchanged. Printing errors, such as backwards or upside down letters, were corrected; duplicate words were deleted; missing punctuation was added.

*** END OF THE PROJECT GUTENBERG EBOOK THE JOURNAL OF
PRISON DISCIPLINE AND PHILANTHROPY, JANUARY, 1863 ***

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